

D352

Employment and Labor Law

Armored Drill

8 concepts · 12 items · 4 transfer items

What this is. Every concept in this course's public description, re-asked with more disguise than a practice test uses. Each stem carries facts that do not decide it. Every wrong answer is a named trap.

Source. Scope from the course's public description in the WGU Institutional Catalog (September 2026); items written from the field's standard body of knowledge. No WGU assessment item, course material or proprietary content is used or reproduced. Not affiliated with or endorsed by Western Governors University.

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How to run it

Paper first. Pencil. One pass, no notes, a timer if you want the pressure.

1. **Before you read the options**, fill the strip under the item: the target word (what is actually being asked), and the one fact in the stem that decides it.
2. **Principle before arithmetic**. Name the rule, then compute.
3. **Camouflage**. Most of every stem does not matter. Ask: which single fact decides this?
4. **Inverse pairs are the bait**. If two options are opposites, one of them is the trap built for you.
5. **Mark sure, unsure or guess** honestly. Sure-and-wrong is the most valuable miss on the page — it is a wrong mental model.
6. **Absolutes** (always, never, guarantee) are usually wrong. And recognizing an answer is not the same as owning it.
7. Items with a **heavy black bar** on the left are **transfer items**: the same principle, reversed or solved for a different variable.
8. Stop at the STOP page. Then grade, fill the triage grid, and tally the traps you fell for. The biggest tally is what you drill next.

The strip, filled in, looks like this:

Target word _____	The one fact that decides _____	Answer _____	[] sure [] unsure [] guess
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Items

1.

An at-will driver at a trucking company is fired the day after refusing her supervisor's order to falsify her driving logs, which would violate federal safety rules. She had worked there four years and earned two safety awards. Which statement is most accurate?

- A. The firing is lawful because she had no written contract.
- B. The firing likely falls under the public-policy exception to at-will employment.
- C. The firing is lawful, because at-will employees can be fired for any reason at all.
- D. The firing is unlawful because she had earned safety awards.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

2.

A warehouse requires every applicant to lift 100 pounds, though the job rarely requires lifting more than 40. The rule screens out far more women than men. The warehouse recently unionized and sits near an interstate. Which theory of discrimination fits best?

- A. No discrimination, because the rule applies to everyone.
- B. No discrimination, because a union shop sets its own rules.
- C. Disparate treatment.
- D. Disparate impact.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

3. [TRANSFER — reversed stem / different variable]

A manager tells an applicant she will not be hired because the job is better suited to a man. Which theory of discrimination fits?

- A. Disparate treatment.
- B. Disparate impact.
- C. None, unless a written policy excludes women.
- D. Hostile work environment.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

4.

A family-owned bakery with 12 employees refuses to hire a 58-year-old applicant because of his age. The bakery has been open since 1962. Does the federal Age Discrimination in Employment Act (ADEA) apply?

- A. Yes, because the bakery has operated for decades.
- B. No; the ADEA protects only workers 65 and older.
- C. No; the bakery is below the ADEA's 20-employee threshold, though state law may still apply.
- D. Yes; the ADEA covers every employer.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

5.

An accountant with a diagnosed back condition asks for a \$450 sit-stand desk. The firm has 200 employees and \$30 million in annual revenue. The accountant also captains the firm's softball team. What should the firm do?

- A. Deny it, because only visible disabilities need accommodation.
- B. Deny it, because playing softball shows no limitation.
- C. Grant any accommodation employees request, whatever the cost.
- D. Provide the desk as a reasonable accommodation.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

6.

A nonexempt customer-service representative earns \$20 an hour and works 46 hours in one workweek. She also used 8 hours of paid vacation the week before, and her team won a quality award. What is her gross pay for this week?

- A. \$1,140
- B. \$980
- C. \$920
- D. \$1,380

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

7. [TRANSFER — reversed stem / different variable]

A nonexempt employee earned \$1,150 for a 44-hour week, with time-and-a-half for hours over 40. What is her regular hourly rate?

- A.** \$28.75
- B.** \$17.42
- C.** \$25.00
- D.** \$26.14

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

8.

An employee at a 300-person company has worked there 14 months and logged 1,400 hours in the past 12 months. All employees work at one site. She requests leave for the birth of her child. She also serves on the safety committee. What is she entitled to under the FMLA?

- A.** Nothing, because committee members are exempt.
- B.** Nothing; she needs 1,500 hours.
- C.** Up to 12 weeks of paid leave.
- D.** Up to 12 weeks of unpaid, job-protected leave.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

9. [TRANSFER — reversed stem / different variable]

Which employee is NOT eligible for FMLA leave?

- A.** Worked 18 months, but only 1,000 hours in the past year, at a 400-employee site.
- B.** Worked 13 months and 1,300 hours at a site with 60 employees.
- C.** Worked 2 years full time at a 30-person site, with 25 more employees 60 miles away.
- D.** Worked exactly 12 months and 1,250 hours at a 70-employee site.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

10.

A supervisor tells a subordinate she will get the promotion only if she goes on a date with him. The office holds quarterly team dinners and just moved to a new floor. Which type of harassment is this?

- A.** Hostile work environment.
- B.** Not harassment unless it happens more than once.
- C.** Quid pro quo harassment.
- D.** Retaliation.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

11. [TRANSFER — reversed stem / different variable]

Coworkers post demeaning jokes about an employee's religion almost daily for several months. No job benefit is tied to the conduct. Which type of harassment is this?

- A.** Not harassment, because no supervisor was involved.
- B.** Hostile work environment.
- C.** Disparate impact.
- D.** Quid pro quo.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

12.

An employee files an EEOC charge alleging pay discrimination. Two weeks later she is moved to the night shift and her bonus is cut. The EEOC later finds no pay discrimination. The company is based in Denver and has 900 employees. Can she still have a retaliation claim?

- A.** Yes; filing a good-faith charge is protected even if the underlying claim fails.
- B.** It depends on Colorado's rules for large Denver employers.
- C.** No, because retaliation covers only firing.
- D.** No, because the pay claim failed.

Target word	The one fact that decides	Answer	[] sure [] unsure [] guess
_____	_____	___	

STOP

Answers and dissection follow. Finish every item and every strip first.

Key and dissection

Struck-through text is the camouflage: facts that do not decide the item.

1. Answer B Concept 1

An at-will driver at a trucking company is fired the day after refusing her supervisor's order to falsify her driving logs, which would violate federal safety rules. ~~She had worked there four years and earned two safety awards.~~ Which statement is most accurate?

Target word: legality of the firing **Decides:** Fired for refusing to break the law.

A	Dropped element	Drops the public-policy exception, which does not need a contract.
B	Correct	Firing someone for refusing to break the law is a recognized exception.
C	Absolute language	At-will does not permit firing for illegal reasons.
D	Camouflage	Awards do not decide legality; the reason for firing does.

2. Answer D Concept 2

A warehouse requires every applicant to lift 100 pounds, though the job rarely requires lifting more than 40. The rule screens out far more women than men. ~~The warehouse recently unionized and sits near an interstate.~~ Which theory of discrimination fits best?

Target word: discrimination theory **Decides:** Neutral rule, lopsided effect, not job-related.

A	Dropped element	Drops the unequal effect.
B	Camouflage	Union status does not decide Title VII liability.
C	Confusion set	Nothing shows intent to treat women differently.
D	Correct	A neutral rule excludes a protected group and exceeds job needs.

3. Answer A Concept 2 · transfer

A manager tells an applicant she will not be hired because the job is better suited to a man. Which theory of discrimination fits?

Target word: theory from stated motive — reverse **Decides:** Stated intent based on sex.

A	Correct	Openly treating her differently because of sex.
B	Inverted operation	Impact involves a neutral rule, not a stated motive.
C	Dropped element	A spoken reason is enough to show intent.
D	Adjacent category	That concerns harassment on the job, not a hiring decision.

4. Answer C Concept 3

A family-owned bakery with 12 employees refuses to hire a 58-year-old applicant because of his age. ~~The bakery has been open since 1962.~~ Does the federal Age Discrimination in Employment Act (ADEA) apply?

Target word: ADEA coverage **Decides:** ADEA requires 20 or more employees.

A	Camouflage	Age of the business does not decide coverage.
B	Confusion set	It protects workers 40 and older.
C	Correct	12 employees is under the federal threshold.
D	Absolute language	Coverage depends on size.

5. Answer D Concept 4

An accountant with a diagnosed back condition asks for a \$450 sit-stand desk. The firm has 200 employees and \$30 million in annual revenue. ~~The accountant also captains the firm's softball team.~~ What should the firm do?

Target word: accommodation decision **Decides:** Low cost, large employer: no undue hardship.

A	Adjacent category	The ADA covers non-visible disabilities too.
B	Camouflage	Recreation does not decide whether the condition needs accommodation at work.
C	Absolute language	Undue hardship is a limit.
D	Correct	The cost is small relative to resources, so there is no undue hardship.

6. Answer B Concept 5

A nonexempt customer-service representative earns \$20 an hour and works 46 hours in one workweek. ~~She also used 8 hours of paid vacation the week before, and her team won a quality award.~~ What is her gross pay for this week?

Target word: gross weekly pay **Decides:** $40 \times \$20 + 6 \times \30 .

A	Camouflage	Adds last week's 8 vacation hours (\$160).
B	Correct	\$800 regular + \$180 overtime ($6 \times \$30$).
C	Dropped element	$46 \times \$20$ leaves out the overtime premium.
D	Inverted operation	Pays 1.5 times on all 46 hours.

7. Answer C Concept 5 • transfer

A nonexempt employee earned \$1,150 for a 44-hour week, with time-and-a-half for hours over 40. What is her regular hourly rate?

Target word: solve for the rate **Decides:** $40r + 4(1.5r) = 46r$.

A	Wrong stem number	$\$1,150 \div 40$ uses only the regular hours.
B	Inverted operation	$\$1,150 \div 66$ applies the premium to all 44 hours.
C	Correct	$\$1,150 \div 46 = \25.00 .
D	Dropped element	$\$1,150 \div 44$ ignores the overtime premium.

8. Answer D Concept 6

An employee at a 300-person company has worked there 14 months and logged 1,400 hours in the past 12 months. All employees work at one site. She requests leave for the birth of her child. ~~She also serves on the safety committee.~~ What is she entitled to under the FMLA?

Target word: FMLA entitlement **Decides:** Meets 12 months, 1,250 hours, and 50 employees.

A	Camouflage	Committee service does not affect eligibility.
B	Wrong stem number	The threshold is 1,250 hours.
C	Adjacent category	Federal FMLA leave is unpaid.
D	Correct	She meets all eligibility tests.

9. Answer A Concept 6 • transfer

Which employee is NOT eligible for FMLA leave?

Target word: find the ineligible case — reverse **Decides:** Fails the 1,250-hour test.

A	Correct	Below the 1,250-hour requirement.
B	Inverted operation	Meets all three tests.
C	Confusion set	55 employees within 75 miles meets the test; it is not per site.
D	Wrong stem number	Meeting the thresholds exactly is enough.

10. Answer C Concept 7

A supervisor tells a subordinate she will get the promotion only if she goes on a date with him. ~~The office holds quarterly team dinners and just moved to a new floor.~~ Which type of harassment is this?

Target word: type of harassment **Decides:** A job benefit tied to a sexual demand.

A	Confusion set	Hostile environment is severe or pervasive conduct, not a benefit trade.
B	Dropped element	A single quid pro quo demand can be enough.
C	Correct	A job benefit is conditioned on submitting.
D	Adjacent category	Retaliation follows a protected complaint; none is described.

11. Answer B Concept 7 • transfer

Coworkers post demeaning jokes about an employee's religion almost daily for several months. No job benefit is tied to the conduct. Which type of harassment is this?

Target word: type from ongoing conduct — reverse **Decides:** Pervasive conduct, no benefit trade.

A	Dropped element	Coworker harassment counts when the employer knew or should have known.
B	Correct	Pervasive conduct based on religion alters working conditions.
C	Adjacent category	Disparate impact concerns neutral policies, not conduct.
D	Inverted operation	No job benefit is involved.

12. Answer A Concept 8

An employee files an EEOC charge alleging pay discrimination. Two weeks later she is moved to the night shift and her bonus is cut. The EEOC later finds no pay discrimination. ~~The company is based in Denver and has 900 employees.~~ Can she still have a retaliation claim?

Target word: retaliation claim viability **Decides:** Protected activity plus adverse action.

A	Correct	Retaliation protection does not depend on winning the original claim.
B	Camouflage	Location and size do not decide the federal retaliation question.
C	Adjacent category	Shift changes and pay cuts can be adverse actions.
D	Dropped element	Drops that the filing itself is protected.

Triage grid

Write each item number in the box it belongs to.

	Right	Wrong
Sure	Owled.	Concept inversion — top priority. A wrong mental model; it survives rewording.
Unsure / guess	Recognition, not mastery. Re-drill with the transfer.	Not learned yet.

Trap tally

For every miss, find the letter you chose in the key and tally its trap. The biggest number is the pattern to drill.

Trap	What it does	In this drill	Your misses
Dropped element	Leaves out a required term or step.	8	
Wrong stem number	A figure copied from the prompt that is not the answer.	3	
Adjacent category	The right idea in the wrong bucket.	6	
Inverted operation	Direction flipped: add/subtract, cause/effect, higher/lower.	5	
Absolute language	Always, never, guarantee — where judgment applies.	3	
Confusion set	Every option is real; the test is exact role-matching.	4	
Camouflage	Answers a stem fact that was never the question.	7	

Anchor rows — the concept list

One row per concept: the rule to lock in, the trap that catches people, and the tell in the question that signals it.

#	Concept	Rule	Trap	Tell
1	At-will and its exceptions	At-will employment lets either side end the job for almost any reason, but not for an illegal reason such as refusing to break the law (public-policy exception), discrimination, or retaliation.	Thinking at-will means any firing is lawful.	A firing right after the employee refused something illegal.
2	Disparate treatment vs. disparate impact	Disparate treatment is intentional different treatment because of a protected trait; disparate impact is a neutral rule that disproportionately excludes a protected group and is not job-related.	Thinking a rule applied to everyone cannot discriminate.	A stated motive (treatment) vs. a neutral rule with lopsided results (impact).
3	Coverage thresholds	Title VII and the ADA cover employers with 15+ employees; the ADEA covers 20+ and protects workers 40 and older; FMLA covers 50+.	Assuming every federal law covers every employer.	A small employer and a specific statute.
4	ADA reasonable accommodation	Employers must provide reasonable accommodations to qualified employees with disabilities unless doing so causes undue hardship.	Thinking any request must be granted, or none if the disability is not visible.	A modest-cost request from a large employer.
5	FLSA overtime	Nonexempt employees earn 1.5 times their regular rate for hours worked over 40 in a workweek; paid leave hours are not hours worked.	Paying straight time, paying 1.5 on all hours, or counting vacation hours.	Hourly rate, hours over 40, and a nonexempt worker.
6	FMLA eligibility	Eligible employees have 12 months of service, 1,250 hours in the past 12 months, and work where 50+ employees are within 75 miles; they get up to 12 weeks of unpaid, job-protected leave.	Thinking FMLA is paid, or counting employees only at one site.	Months of service, hours, and headcount near the site.
7	Quid pro quo vs. hostile environment	Quid pro quo ties a job benefit to submitting to sexual conduct; a hostile environment is severe or pervasive harassment that changes working conditions.	Thinking harassment must happen repeatedly to count.	A job benefit offered or threatened (quid pro quo) vs. ongoing conduct (hostile).
8	Retaliation	Punishing an employee for a good-faith complaint or charge is illegal even if the original complaint is not proven.	Believing a failed complaint removes retaliation protection.	An adverse action soon after a complaint.

Course scope (public description): Employment and labor law provides the framework that protects employees and guides employers. This course equips you to interpret and apply the legal requirements that shape every stage of the employment relationship. You will learn how to identify risks, ensure compliance, and establish fair

practices that protect both organizational interests and employee rights.